

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 3790

By: Adams

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6 AS INTRODUCED

7 An Act relating to contracts; creating the Oklahoma
8 Homeowner Repair Contract Protection Act; defining
9 home solicitation contract; allowing a five-day
voidable contract period for homeowners; providing
for codification; and providing an effective date.

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12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1100 of Title 15, unless there
15 is created a duplication in numbering, reads as follows:

16 This act shall be known as the "Oklahoma Homeowner Repair
17 Contract Protection Act".

18 SECTION 2. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1101 of Title 15, unless there
20 is created a duplication in numbering, reads as follows:

21 "Home solicitation contract" means entering into a home repair
22 contract or services in which the home repair contractor or a person
23 acting for him or her engages in a personal solicitation of the sale
24 at a residence of the buyer and the buyer's agreement is given to

1 the contractor or a person acting for him or her. It does not
2 include a sale made pursuant to a preexisting revolving contract, or
3 a contract made pursuant to prior negotiations between the parties
4 at a business establishment at a fixed location where goods or
5 services are offered or exhibited for sale. Nothing in this act
6 shall prohibit advertising, responding to homeowner-initiated
7 contact, or performing services when contacted directly by the
8 property owner.

9 SECTION 3. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 1102 of Title 15, unless there
11 is created a duplication in numbering, reads as follows:

12 1. In addition to any right otherwise to revoke an offer, the
13 homeowner has the right to cancel a home solicitation contract until
14 midnight of the fifth calendar day after the day on which the
15 homeowner signs an agreement for home repairs;

16 2. Cancellation occurs when the homeowner gives written notice
17 of cancellation to the contractor at the address stated in the
18 agreement or offer to purchase;

19 3. Notice of cancellation, if given by mail, is given when it
20 is deposited in a mailbox properly addressed and postage prepaid;
21 and

22 4. Notice of cancellation given by the homeowner need not take
23 a particular form and is sufficient if it indicates by any form of
24

1 written expression the intention of the homeowner not to be bound by
2 the home solicitation sale.

3 SECTION 4. This act shall become effective November 1, 2026.

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